

notice of motion. (Citations.) This rule applies even when no notice was given at all. (Citations.)”].)

With respect to plaintiff's request to compel a second session for the deposition of defendants' retained neurosurgeon and designated expert, Dr. Motasem Refaat, the Court further observes that the meet and confer requirements were not met. The defendants' opposition to plaintiff's ex parte application provides that it was defendants who tried to reschedule a second session, and even then plaintiff's counsel did not meaningfully respond. (Hart Decl., ¶¶ 6-9, Exs. C-E.) (Code Civ. Proc., § 2025.420, subd. (a).)

Furthermore, even if plaintiff established compliance with the meet and confer requirements met, plaintiff has not adhered to Fresno's local rules which require that the moving party first request an informal Pretrial Discovery Conference. Under Local Rule 2.1.17, "Except for motions to compel the deposition of a duly noticed party or subpoenaed person(s) who have not timely served an objection pursuant to Code of Civil Procedure section 2025.410 or otherwise obtained the consent of all interested parties agreeing to the non-appearance of the party or person(s) at the deposition as noticed or subpoenaed, ... no motion under sections 2016.010 through 2036.050, inclusive, of the California Code of Civil Procedure shall be heard in a civil unlimited case unless the moving party has first requested an informal Pretrial Discovery Conference with the Court and such request for a Conference has either been denied and permission to file the motion is expressly granted via court order or the discovery dispute has not been resolved as a consequence of such a conference and permission to file the motion is expressly granted after the conference." (Fresno Sup. Ct. Local Rules, rule 2.1.17(A).)

Finally, the Court declines to address the issue of plaintiff's request to proceed and complete the deposition of defendants' retained expert Sarah Larsen, RN, MSN, FNP, which was scheduled for June 4, 2026. The instant motion was filed on June 2, 2026, and was accordingly premature.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/23/26
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: **Cisneros v. Ortiz**
Superior Court Case No. 25CECG04590

Hearing Date: June 24, 2026 (Dept. 501)

Motion: Expedited Petition to Compromise Claim of Minor

Tentative Ruling:

To deny the petition, without prejudice, for the reasons explained below. In the event that oral argument is requested the minor is excused from appearing.

Explanation:

The court has reviewed the petition and supporting declaration and generally approves of the settlement, however, there are items of costs that prevent the court from granting the petition. The Petition requests costs in the amount of \$1,124.53. The court does not intend to approve charges against the minor's recovery that are unreasonable. (Prob. Code, § 3601.)

While counsel has explained much of the costs to the court's satisfaction in the supplemental declaration, concerns remain for the \$418.20 in costs described as "Case Costs". Of these, the court is particularly concerned with the reasonableness of \$10.00 in phone costs, \$5.50 for file opening costs, \$82.08 of the estimated closing costs¹, and \$200.00 for in-house record retrieval. The \$200.00 for in-house record retrieval appears duplicative of costs the court is already inclined to grant associated with obtaining the minor's records from CIOX Health, MRO, Records Research, Inc., Adventist, CRMC, and Sequoia Safety Council. The court is only inclined to accept as reasonable \$120.62 of the \$418.20 requested as "Case Costs". Thus, the total costs the court would be inclined to accept as reasonable would be \$826.95.

As such, the petition is denied, without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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¹ Of the total \$132.08 in estimated closing costs, the court is inclined to allow for the \$50.00 requested to cover notary fees, leaving a remaining \$82.08 for which the court is not inclined to find reasonable.